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## NEWS

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## Iraq: Thousands of displaced Iraqis stigmatized for perceived IS ties trapped in cycle of abuse

Thousands of displaced Iraqis with perceived ties to the armed group calling itself the Islamic State (IS), already subjected to arbitrary detention, enforced disappearances and unfair trials, are today at heightened risk as Iraqi authorities move ahead with the closure of camps despite the range of obstacles to their safe, dignified and sustainable return, Amnesty International said in a new report published today.

Marked for **Life: Displaced Iraqis in cycle of abuse and stigmatization** reveals how the central Iraqi authorities, along with the Kurdistan Regional Government (KRG), continue to stigmatize displaced people with perceived ties to IS, blocking or hindering their access to civil documentation essential for employment, education, access to state benefits and free movement. Thousands of families across Iraq still do not know the fate and whereabouts of their loved ones who were disappeared.



# **The Iraqi authorities and KRG must address the continuing collective punishment of IDPs with perceived links to IS as an integral part of any national plans to close camps – currently the only option for shelter for thousands of people.**

**Lynn Maalouf**

The Iraqi authorities have over the last weeks pushed ahead with the closure of camps, thus far shutting down Ninewa and Karbala camps in Baghdad, among others, and in effect putting at risk thousands who are ending up in precarious shelters or being returned to their areas of origin despite the fears of some that they will be unsafe there.

“The Iraqi authorities and KRG must address the continuing collective punishment of IDPs with perceived links to IS as an integral part of any national plans to close camps – currently the only option for shelter for thousands of people. Tackling these injustices is the only way to ensure a safe and dignified return, otherwise they risk perpetuating the sorts of actions that sow the seeds for future cycles of violence” said Lynn Maalouf, Amnesty International’s Deputy Regional Director for the Middle East and North Africa

“To prevent further cycles of abuses, Iraq’s authorities must guarantee that no one is punished for the crimes of others; that all Iraqis can obtain civil documentation; and that the whereabouts of those disappeared is revealed. The internally displaced must be given a meaningful choice about their future and any returns must be dignified, safe and sustainable.”

Amnesty International’s findings are based on remote and field research conducted between November 2018 and October 2020. It conducted individual interviews with 119 IDPs, visiting seven IDP camps, in addition to interviews with 15 humanitarian workers as well as officials from UN agencies. The organization documented the cases of 67 individuals – 61 men, three women and three boys under the age of 18 at the time of arrest – who were arrested for suspected ties to IS and subjected to enforced disappearance between 2017 and 2019 by Iraqi military and security forces.

## **Denied a safe future**

People with perceived ties to IS, and their relatives who are equally stigmatized and punished, have long faced a range of barriers to obtaining, renewing or replacing civil documents. Security forces present at civil status directorates have routinely subjected them to harassment and intimidation. Many said they would not attempt getting their civil documents again to avoid this treatment.

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When the authorities label someone a suspected IS affiliate, it can leave them facing violence, further displacement, and other barriers to a safe future — even after being acquitted of any crime.

“Abed”, aged 23, who was released from Asayish detention where he was held for nearly three years before being acquitted of affiliation to IS by a court in the KR-I due to lack of evidence, told Amnesty international he now feared for his safety.

“In Iraq, nothing is bigger and more dangerous than someone calling you Daeshi [IS member]. One word and you’re gone. I used to have hope for a normal life. But now there are red sniper dots on all of us,” he said.

All the men and boys released from detention in the KR-I who spoke to Amnesty International expressed fears that they would be rearrested by central Iraqi security forces and face torture or other ill-treatment and unfair trials if they sought to return to their homes in the governorates of Kirkuk, Ninewa and Salah al-Din. Their fears stemmed mostly from reports of the rearrest of relatives, friends and other men and boys who had been detained and released by KRG authorities as well as threats levelled at their families in their areas of origin. Those arrests had taken place at checkpoints leading to the individual’s area of origin or shortly after their arrival in their home area and were carried out most commonly by the National Security Service, but also by other forces including the PMU, and Military Intelligence.

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**In wanting IDPs to return from the camps they are living in, the Iraqi government is seeking to close the painful chapter of the conflict. However, it is crucial that in doing so, it does not endanger those returning.**

**Lynn Maalouf**

Former detainees and families of those arrested because of their perceived affiliation to IS, as well as women heads of household whose male relatives went missing or died in the conflict involving IS and were thus perceived to have ties to IS, told Amnesty International that they felt the IDP camps in the KR-I and Ninewa governorate in which they were living were their only option for shelter given the risk of abuses they faced outside them.

“In wanting IDPs to return from the camps they are living in, the Iraqi government is seeking to close the painful chapter of the conflict. However, it is crucial that in doing so, it does not endanger those returning,” said Lynn Maalouf.

### **Arbitrary arrests, enforced disappearance and torture**

In their pursuit of fighting IS, Iraqi and KRG authorities arrested displaced men and boys from checkpoints, front lines, during military operations, displacement camps and in their areas of origin after return. KRG authorities subjected men and boys as young as 14 to arbitrary detention, torture, and unfair trials. Iraqi security forces arrested men, women and boys who later disappeared. These actions have left released detainees – including those acquitted or released without charge – their families and families of those disappeared unable to escape a stigma that has hindered hopes for a safe future.

Of the 115 cases documented in Amnesty International, Asayish (KRG’s primary security agency) detained 48 men and boys while Iraqi military and security forces subjected 67 persons to enforced disappearance in Ninewa.

Asayish members carrying out arrests either gave no basis for the arrest or simply stated that the individual’s name was on a “wanted list.” Several former detainees said they were told by interrogators that their arrest had been based on an informant’s report. One man was informed by Asayish they were taking him into custody because one of his sons was missing and presumed to have joined IS.

In some cases, Iraqi security forces beat those they were arresting, then placed them in stress positions while they were handcuffed and blindfolded before dragging them away. This is likely to constitute torture or other ill treatment under international law.

All the men and boys detained by the Asayish stated that they were subjected to torture or other ill-treatment in an attempt to force a “confession” from them. Many were beaten with fists, pipes or hoses, while one man was threatened with sexual violence against his female relatives.

The report reveals how men and boys were kept in detention facilities for weeks or even months without being referred to judicial authorities.



**Fair, effective and transparent prosecutions for crimes perpetrated by all sides to the conflict, is key to give the authorities a sustainable basis to overcome the destructive legacy of IS.**

**Lynn Maalouf**

Detainees brought to court in Erbil were frequently convicted under the KR-I’s vaguely worded Anti-Terrorism Law. Their trials failed to comply with international standards for fair

trial and, where applicable, juvenile justice. Whether they were freed without charge, acquitted or released after completing a prison sentence, former detainees have faced arbitrary restrictions on their movement.

As a state party to the International Convention for the Protection of all Persons against Enforced Disappearance, Iraq is required to investigate and bring to justice any person who “commits, orders, solicits or induces” or attempts to commit an enforced disappearance. The authorities must further immediately bring to an end the practice of torture and ill-treatment, and ensure that detainees are held in conditions that are dignified and conducive to detainees’ mental and physical wellbeing. Amnesty International is also calling on the authorities of central Iraqi and KRG to ensure there is effective communication between them regarding information pertaining to the arrest, conviction, acquittal and release of individuals arrested and/or tried in different areas of Iraq.

Amnesty International has extensively **documented** IS crimes in Iraq, some of which amount to war crimes and crimes against humanity, and recognizes that the armed group’s activities continue to pose a threat to civilian lives in Iraq today. It has also acknowledged the immense challenges facing the KRG and Iraqi authorities and their duty to protect the security of all civilians on their territory and to ensure that IS perpetrators are held accountable. However, Amnesty International remains seriously concerned about the authorities’ failure to conduct fair trials of IS suspects, that are in line with international fair trial standards, and without recourse to the death penalty, and of their failure to hold accountable those members of Iraqi or KRG security forces responsible for internationally recognized crimes.

“Fair, effective and transparent prosecutions for crimes perpetrated by all sides to the conflict, is key to give the authorities a sustainable basis to overcome the destructive legacy of IS,” said Lynn Maalouf.

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